

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SANTA FE DISCOUNT CRUISE PARKING, INC., D/B/A EZ
CRUISE PARKING; LIGHTHOUSE PARKING INC; AND SYLVIA
ROBLEDO D/B/A 81ST DOLPHIN PARKING, *Complainants*

DOCKET NO. 14-06

v.

THE BOARD OF TRUSTEES OF THE GALVESTON WHARVES;
AND THE GALVESTON PORT FACILITIES CORPORATION,
Respondents.

Served: January 9, 2023

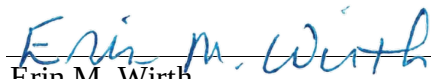
ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

ORDER GRANTING UNOPPOSED TEMPORARY STAY

On January 6, 2023, Respondent filed an unopposed motion seeking a stay of sixty days while the parties mediate this dispute. The motion states that the parties have agreed to mediate with a specified local certified mediator and that the request is not made to delay the proceedings “but rather to pursue an alternative route to the resolution of the remaining dispute, with minimal impact on the Commission’s judicial resources.” Motion at 1.

This proceeding has been pending for an extended period of time and has been the subject of multiple appeals, including to the D.C. Court of Appeals. All of the Complainants have settled except for Complainant Sylvia Robledo d/b/a 81st Dolphin Parking. The Commission issued an Order on Initial Decision on Remand on April 15, 2021, and an Order Granting in Part and Denying in Part Petition for Reconsideration on June 2, 2022. These Commission orders have narrowed the remaining issue to specific questions with regard to calculating reparations.

The Commission has a strong and consistent policy of encouraging settlements and settlement would ensure a final resolution of this proceeding. The parties request a stay for a limited and reasonable time period. Therefore, it is hereby ordered that the motion be **GRANTED**. Moreover, the parties must file a joint status report on February 8, 2023, to provide an update regarding the status of negotiations but not the parties’ positions. If a settlement is not reached, on March 10, 2023, the parties shall submit another status report and the stay will be lifted. If a settlement is reached, the parties must file a motion seeking approval of the settlement with a copy of the settlement.


Erin M. Wirth
Chief Administrative Law Judge